

Anatom Solutions LLC
DBA Anatom Restoration
16658 E 2nd Ave. Aurora, CO 80011
(720) 514-3739 <http://denverrestorationservices.com>



RECONSTRUCTION AGREEMENT ("Contract")

PROPOSAL SUBMITTED TO: Ross Mallory & Theresa Mc Donald **DATE:** 7/21/2026

Property Owner: Ross Mallory & Theresa Mc Donald

JOB ADDRESS: 4300 S. Alton Pl.

CITY / ST / ZIP: Greenwood Village, CO 80111

Scope of Work / Work: Reconstruction work in accordance with the estimate.

Anatom Solutions, LLC doing business as Anatom Restoration ("Anatom") Proposes to hereby to furnish material and labor – complete in accordance with the Scope of Work as described in the attached estimate which must be initialed and signed by Property Owner/Authorized Agent, for the sum of: \$ 14,100.45 ("Contract Amount") plus any supplements or for insurance proceeds plus the deductible, Payment shall be due and paid to Anatom as follows: **25% upon commencement, 25% during the work, and the final 50% upon completion of the project.**

Expected Completion Date - _____

Authorization – Property Owner/Authorized Agent hereby authorizes Anatom to perform the Scope of Work. All detailed scopes, invoices, and estimates prepared for and signed by Property Owner/Authorized Representative become part of and included in this Contract. Owner/Authorized Representative understands that reconstruction work is progressive and the estimate may need to be adjusted via a Change Order. Property Owner/Authorized Representative hereby understands that he/she is responsible for all payments and approves billing of any amount required to perform the aforementioned services.

All material is guaranteed to be as specified. All work to be completed in a workmanlike manner according to standard practices. Any alteration or deviation from above specifications involving extra costs will be executed only upon written Change Orders, and will become an extra charge over and above the estimate.

This proposal may be withdrawn by Anatom if not accepted within 30 days.

Acceptance of Contract – The Contract Amount, Scope of Work / Estimate, and Terms and Conditions (sometimes referred to as "Contract Documents"), to the extent any of these documents are attached to this Contract, they are made part of and incorporated into this Contract, and, have been reviewed, understood and are satisfactory and are hereby accepted. Anatom is authorized to perform the Scope of Work as specified. Payment will be made as outlined above.

PROPERTY OWNER/AUTHORIZED REPRESENTATIVE:

Signature _____ Date _____

Name:

Signature _____ Date _____

Name:

ANATOM SOLUTIONS, LLC

By:   Date 7/21/2026

Name: Tom Liberman
Title: Owner

TERMS AND CONDITIONS

1. SCOPE OF THE WORK.

1.1 Contractor will execute all the work described in the Contract Documents ("Work"), except to the extent specifically indicated in the Contract Documents to be the responsibility of Owner.

1.2 Contractor agrees to construct the Work (1) in a good and workmanlike manner in accordance with the Contract Documents, and (2) in compliance with all applicable laws, rules, regulations, codes, and ordinances (collectively, "Laws"). Contractor represents and warrants to Owner that (i) the Work has been or will be approved by all applicable governmental authorities, as required by Law, (ii) the Work as completed, will comply with all Laws. Contractor will complete the Work in accordance with the requirements of this Contract, and the Work will be Substantially Complete, defined in Section 7 below, on the date specified in on the first page of the Contract, subject to Change Orders and unforeseen events, as further detailed in Sections 4 and 6 of this Contract.

1.3 Contractor hereby specifically acknowledges and declares that the Contract Documents are full and complete, are sufficient to have enabled Contractor to determine the cost of the Work therein in order to enter into this Contract and that the Drawings, the Scope of Work, and all addenda, are sufficient to enable it to construct the Work outlined therein. Contractor further acknowledges that it has visited the Property, examined all conditions affecting the Work, is familiar with all visible conditions thereon and affecting the same, and, having carefully examined all documents that there are no discrepancies or omissions in the Contract Documents of which it is aware.

1.4 Contractor is an independent contractor and will be solely responsible for all construction resource means, methods, techniques and procedures, and for the acts and omissions of all of its employees, agents, subcontractors, their employees and agents, and all other persons performing any labor or supplying any materials for the Work.

2. OWNER. Owner responsibilities and representations:

2.1 Owner agrees not to delay, hinder or interfere with the Work of Contractor. Owner agrees to reasonably (i) cooperate with Contractor in scheduling the Work, (ii) provide necessary information to Contractor in a timely manner, (iii) make timely approval of material selections, (iv) finalize decisions on design and/or construction components which are undetermined at the time of this Contract, and (v) coordinate any Work provided by Owner so as not to delay the Work of Contractor.

2.2 Owner agrees to make prompt payments to Contractor in accordance with the terms of this Contract.

2.3 Owner has the right to request that Contractor make changes in the Work. However, Contractor will have no obligation to execute changes to the Work unless Owner executes a Change Order with respect to such change and a revision to the estimate for the Change Order.

2.4 Owner agrees not give directions or orders to anyone other than Contractor. Owner agrees not to interfere with construction personnel, including but not limited to Contractor's employees and subcontractors. Owner shall not negotiate with or retain any of Contractor's employees or subcontractors without Contractor's prior written consent. Owner will not occupy or have any work performed on the Project until Substantial Completion (defined in Section 7 below), or termination of this Contract.

2.5 Owner is the record owner of the Property and has authority to enter this Contract.

2.6 Owner agrees, when applicable, that it shall be solely responsible for obtaining any necessary approval of the Work from a homeowner's association, or similar entity.

2.7 Owner will provide Contractor, including its employees and subcontractors, with use of all necessary utility services, including electricity, water, when appropriate, a designated bathroom and use of the driveway for a pods and/or a dumpster.

2.8 Owner shall not access, use, occupy, or take possession of the section of the Property where the Work is occurring until the Work is completed and final payment of the full Contract Amount has been made by the Owner to the Contractor unless the Parties agree in writing that certain specified Work is to be completed subsequent to occupancy by the Owner. Contractor is not liable for any injuries or damages related in any way to Owner, or any guest, invitee, or licensee of Owner, accessing the Property where the Work is occurring prior to Substantial Completion, as defined in Section 7 and Owner signing a Certificate of Completion and Satisfaction. Owner understands that accessing the Work are prior to

Substantial Completion may result in significant personal injury or death and accessing the Work are prior to Substantial Completion carries with certain inherent risks that cannot be eliminated regardless of the care taken to avoid such risks. In the event Owner does access the Work area, Owner hereby voluntarily accepts and assumes, on behalf of itself and Owner's guests, invitees and licensees, all risk of loss, personal injury, sickness, death, damage, and expense arising from such inherent risks.

2.9 Owner shall purchase a liability insurance policy including fire and casualty insurance to the full insurable value of the Property and shall name the Contractor as an additional insured and provide proof of such prior to commencement of the Project. Contractor shall not be liable for damage or theft of any materials delivered to the Property.

3. PAYMENT PROCEDURES.

3.1 Owner shall pay Contractor the Fifty Percent (50%) of the Contract Amount on the date this Contract is signed and the balance upon Substantial Completion. Owner's obligation to issue payment is not dependent on whether Owner receives insurance benefits.

3.2 All amounts past due shall accrue interest at the rate of eighteen percent (18%) per annum.

3.3 If a relevant governmental authority rejects any of the Work performed by Contractor, Owner may withhold payment for the Work that was rejected to Contractor after providing written notice to Contractor. Payment shall be due immediately after the relevant Work is approved by the governmental authority.

4. CHANGE ORDERS.

4.1 Owner has the right to direct Contractor to make changes in the Work ("Change Order"). The Parties agree that no change in Work, whether by alteration or addition to the Work, will be the basis of an addition to the Contract Amount or a change in the Completion Date unless and until such alteration or addition has been authorized by a Change Order signed by the Owner and Contractor. This requirement is of the essence of the Contract Documents. Accordingly, no course of conduct or dealings between the Parties, nor express or implied acceptance of alterations or additions to the Work, and no claim that Owner has been unjustly enriched by any alteration or addition to the Work, whether or not there is in fact any such unjust enrichment, will be the basis for any claim to an increase in the Contract Amount or change in the Completion Date.

4.2 If the cost estimate for the change in the Work and the extended Completion Date, if applicable, is approved by Owner, Contractor will prepare a Change Order, increasing or decreasing the Contract Amount and/or the scheduled Completion Date, for signature by Owner and Contractor. Once the Change Order is signed by Owner and Contractor, Contractor will order materials and proceed with the changes in the Work as reflected by the Change Order.

5. SUBCONTRACTS.

5.1 Contractor will select Subcontractors to perform those portions of the Work not customarily performed by Contractor's personnel and enter into appropriate agreements with these Subcontractors to perform portions of the Work.

5.2 Contractor will require each Subcontractor to (i) perform Work in accordance with the requirements of the Contract Documents; (ii) carry and maintain liability insurance in accordance with the Contract Documents; and (iii) to furnish such certificates and waivers as Owner may reasonably request.

6. COMPLETION DATE: For any delays to the date of Substantial Completion which are the result of strikes, weather, pandemics, material shortages, or acts of God (collectively, a "Force Majeure Event"), Contractor will be entitled to an extension of time for each day of actual Force Majeure Event, but no monetary compensation will be due from Owner.

7. SUBSTANTIAL COMPLETION. "Substantial Completion" or "Substantially Complete" for purposes of this Contract will mean that (i) all Work has been completed as specified in the Contract Documents and in compliance with all applicable Laws, (ii) all Work has received final acceptance by Owner, and (iii) a Certificate / Letter of Completion has been issued. However, final payment will not be due until Contractor has delivered to Owner a complete release of all liens arising out of the

Contract Documents, or receipts in full covering all labor, materials and equipment for which a lien could be filed, or, in the alternative, a bond satisfactory to Owner indemnifying Owner against any and all such liens.

8. CERTIFICATE OF COMPLETION AND SATISFACTION. It is agreed that at Substantial Completion of the Work, as defined in Section 7, the Owner will sign a Certificate of Completion and Satisfaction.

9. WARRANTIES, WAIVER AND RELEASE.

9.1 Warranties. Contractor shall assign to Owner all manufacturers' warranties applicable to consumer products included within the Work and all subcontractor warranties related to the Work. Further, Contractor warrants that all Work will be free from defects in material or workmanship for a period of one (1) year after completion of the Work and the Project will be constructed in a workmanlike manner and in accordance with all applicable building codes. Contractor shall, at its expense, make all reasonably necessary repairs, replacements and corrections of any such defective work or materials if written notice of such defective work or materials is given by Owner to Contractor with one (1) year after the completion of the Work.

9.2 Implied Warranties. The Contractor makes no warranties, express or implied, including without limitations, warranties of habitability, design, condition, quality, merchantability, fitness for a particular purpose, absence of radon, or otherwise, except as expressly set forth in this Contract. Contractor disclaims all such warranties and Owner waives all such warranties and releases Contractor, its officers, directors, members, agents and employees, from all claims and possible claims, known or unknown, for or arising under any such warranties.

9.3 Waiver and Release. Except to the extent specifically provided in the Contract, Owner waives and releases Contractor, its subsidiaries, affiliates, officers, directors, members, agents and employees from all obligations, claims, and liabilities arising out of the condition, design, or construction of the Project, whether known or unknown, including, without limitations, any claims for consequential, exemplary or punitive damages, emotional distress, mental or physical illness, bodily injury, or death, medical, hospital or rehabilitations costs, pain and suffering, loss of use, loss of value, loss of opportunity, inconvenience, loss of increase in value, or the time value of money and loss or damage to personal property.

9.3.1 Contractor shall not be responsible for damage to underground sprinkler systems, drains or other secondary utilities, or for unknown conditions that cannot be observed in a non-destructive inspection of the Property or conditions that differ materially from those that are indicated or referenced in the Contract Documents, or ordinarily encountered and generally recognized as inherent in the work of the character provided for in this Contract.

10. CLEANUP.

10.1 Contractor agrees to keep the Property in good and clean order, and will remove all trash, debris, shipping and packing materials, and construction scrap materials arising out of Contractor's work. Contractor will not allow any condition to exist which creates a nuisance or fire hazard.

10.2 Contractor further agrees to remove all waste materials upon completion of the Work, together with all tools, equipment, machinery, and surplus materials. Contractor agrees that upon completing the Work at the Property, Contractor will conduct general clean-up operations and leave the Property in broom-clean condition.

11. TERMINATION OF THE CONTRACT.

11.1 Termination by Contractor: Contractor may terminate the Contract for the following reasons:

11.1.1 If the Work is stopped through no act or fault arising by, through or under Contractor for more than five (5) business days;

11.1.2 By order of a court having jurisdiction; or

11.1.3 Because Owner has not made payment within five (5) business days of the payment's due date.

11.2 Termination by Owner: If the Contractor fails or neglects to carry out the Work in accordance with the Contract Documents, the Owner shall give written notice to the Contractor specifying the nature of the default. The Contractor shall have ten (10) days after written notice is given to the Contractor within which to cure such default, or if such default cannot be cured within ten (10) days, then the Contractor shall, within said ten (10) day period, commence correction of the default and continue diligently to correct the default. If the Contractor fails to correct the default within ten (10) days after written notice is

given to the Contractor or fails to commence correction of such default within said ten (10) day period or fails to diligently pursue correction of the default thereafter, then this Contract may be terminated by the Owner.

11.3 Upon termination of this Contract, Contractor will be entitled to be paid the full cost of all Work properly done by Contractor to the date of termination not previously paid for, less sums already received by Contractor on account of the portions of the Work performed. For purposes of this subsection, "all Work properly done" will mean that the Work has been Substantially Completed in accordance with Section 7 above.

12. DISPUTE RESOLUTION.

12.1 Mediation: If the dispute cannot be settled with ten (10) days of a Party receiving written notice of a dispute, the Parties will participate in mediation before filing suit. Unless otherwise agreed, the mediation will occur through the Judicial Arbiter Group, Inc. and the mediation will be held in Arapahoe County, Colorado. The Parties will each pay half of the costs of mediation.

12.2 Waiver of Jury Trial: The Parties irrevocably and unconditionally waive, to the fullest extent possible, their right to trial by jury in any legal proceeding arising out of or related to this Contract.

12.3 Choice of Law and Venue: This Contract shall be governed by the laws of the state of Colorado, and jurisdiction and venue for any dispute arising out or related to this Contract shall be appropriate only in Arapahoe County, Colorado.

12.4 Attorney Fees and Costs: The prevailing Party in any dispute arising out or related to this Contract shall be fully reimbursed by the other Party for all costs, including reasonable attorneys' fees, court costs, expert or consultant fees incurred by the prevailing Party.

13. INSURANCE.

13.1 Contractor will maintain, at all times and at its sole expense, the following insurance in connection with its obligations under this Contract. All such insurance will be written through insurance carriers licensed in the State of Colorado.

13.1.1 Worker's Compensation Insurance with statutory limits and employers' liability coverage as required under Colorado law.

13.1.2 Commercial General Liability Insurance with limits of at least \$1,000,000 combined single limit and an annual aggregate of not less than \$1,000,000.

14. MISCELLANEOUS.

14.1 This Contract, along with the attached Contract Documents, contains the entire agreement of the Parties and supersedes all prior or contemporaneous written or oral negotiations, correspondence, understandings and agreements between or among the Parties, regarding the subject matter hereof.

14.2 This Contract shall be binding upon and inure to the benefit of the Parties hereto and their respective heirs, personal representatives, successors, and assigns.

14.3 Neither Party may assign such Party's rights or obligations under this Contract without the written consent of the other Party.

14.4 The invalidity of any part or provision of the Contract Documents will not impair or affect in any manner whatsoever the validity, enforceability or effect of the remainder of the Contract Documents or this Contract.

14.5 This Contract may be signed in two or more counterparts, all of which when taken together will be deemed one original agreement.

Client: Ross Mallory
Property: 4300 S. Alton Pl
Greenwood Village , CO 80111

Home: (202) 906-0469

Operator: NATHAN

Estimator: Eli

Type of Estimate:

Date Entered: 5/27/2026

Date Assigned:

Price List: CODE8X_02MAY26

Labor Efficiency: Restoration/Service/Remodel

Estimate: ROSS_MALORY_KITCHEN

ANATOM RESTORATION

hereby proposes to furnish all materials and perform all labor necessary for the completion of the work to bring the building located at back to pre-loss conditions.

All material is guaranteed to be as specified and the work to be performed and completed in a substantially workmanlike manner with payments to be made as follows: **1/4 upon commencement, 1/4 during the work, and the final 1/2 upon completion of the project.**

Any alterations or derivation from the scope of work involving extra costs will be executed only upon written change orders and will become an extra charge over and above the original contract.

All insurance supplements automatically become part of this contract.

All agreement are contingent upon strikes, accidents, or delays beyond our control. The owner of the property is to carry fire, tornado, and other necessary insurance on the work that is being done. Workman's Compensation and Certificate of Insurance will be carried by ANATOM RESTORATION.

Acceptance in the proposed amount of: **\$14,100.45**

This proposal may be withdrawn if not accepted within 30 days.

ROSS_MALORY_KITCHEN

1st Floor

1st Floor

DESCRIPTION	QTY
1. Dumpster load - Approx. 12 yards, including dump fees	1.00 EA
2. Final cleaning - construction - Residential	183.66 SF
3. Electrician (estimate)	1.00 EA

Kitchen
Subroom: Kitchen (1)
Height: 8'
Height: 5' 9"

DESCRIPTION	QTY
4. Remove Cabinetry - lower (base) units	10.00 LF
5. Remove Cabinetry - upper (wall) units	11.00 LF
6. Remove Countertop - Granite or Marble	36.00 SF
7. Remove backsplash	94.00 SF
8. Remove 6" backsplash for flat laid countertop	14.50 LF
9. Detach & Reset Outlet	2.00 EA
10. Detach & Reset Sink faucet - Kitchen	1.00 EA
11. Sink - undermount - Detach	1.00 EA
12. P-trap assembly - Detach & reset	1.00 EA
13. Garbage disposal / disposer - Detach & reset	1.00 EA
14. Dishwasher - Detach & reset	1.00 EA
15. Detach & Reset Range hood	1.00 EA
16. Range - gas - Remove & reset	1.00 EA
17. Refrigerator - Remove & reset	1.00 EA
18. Remove 1/2" drywall	203.00 SF
19. Remove Stud wall	128.00 LF
20. Remove 1/2" drywall - hung, taped, floated, ready for paint	10.00 SF
21. Paint the surface area - one coat	20.00 SF
22. Install Cabinetry - lower (base) units	26.00 LF
23. Install Cabinetry - upper (wall) units	11.00 LF
24. Install Cabinet knob or pull	38.00 EA
25. Install Countertop - Granite or Marble	78.50 SF
26. Mortar bed for tile	112.00 SF
27. Install backsplash	112.00 SF
28. Metal trim strip	52.53 LF
29. Install 6" backsplash for flat laid countertop	23.50 LF
30. Outlet	3.00 EA

Grand Total

\$14,153.91

Eli

Grand Total Areas:

1,032.63	SF Walls	606.09	SF Ceiling	1,638.73	SF Walls and Ceiling
603.29	SF Floor	67.03	SY Flooring	150.30	LF Floor Perimeter
0.00	SF Long Wall	0.00	SF Short Wall	178.11	LF Ceil. Perimeter
603.29	Floor Area	653.21	Total Area	1,091.30	Interior Wall Area
902.07	Exterior Wall Area	125.18	Exterior Perimeter of Walls		
0.00	Surface Area	0.00	Number of Squares	0.00	Total Perimeter Length
0.00	Total Ridge Length	0.00	Total Hip Length		

